

26SMCV00684 26SMCV00684

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-22

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 22, 2026

CASE NUMBER

26SMCV00684

MOTION

Motion for Reconsideration

MOVING PARTY

Defendant Bryan Freedman

OPPOSING PARTY

Plaintiff Alexa Nikolas

BACKGROUND

The operative First Amended Complaint ("FAC") filed by Plaintiff Alexa Nikolas ("Plaintiff") against Defendants Bryan Freedman ("Freedman") and Melissa Nathan ("Nathan") alleges two causes of action for (1) defamation and (2) intentional infliction of emotional distress.

On August 12, 2026, the Court denied Freedman's Anti-SLAPP motion. Freedman now moves for reconsideration of that order. Plaintiff opposes the motion.

LEGAL

STANDARD - RECONSIDERATION

Under Code of Civil Procedure section 1008, subdivision (a), "[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make an application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (a).) Where the statutory requirements are met, reconsideration should be granted; upon reconsideration, however, the court may simply reaffirm its original order. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 202.)

ANALYSIS

Defendant proffers as "new or different facts" the August 11, 2026 deposition testimony of Brian W. Horton, the expert who filed an expert report on December 8, 2025 in the Stephanie Jones case.

The Court previously relied on the existence and filing of the December 8, 2025 report in connection with Defendant's argument that Plaintiff's claims are barred by the 1-year statute

of limitations, to demonstrate that this report was the first time Plaintiff had any actual or constructive notice of information connecting the anonymous online postings back to Defendants, and thus, it was the first opportunity Plaintiff had to sue Defendants in connection with the defamatory websites.

Specifically, the December 2025

Horton report "connect[ed] the dots" showing a common authorship between websites smearing his client Stephanie Jones in 2024 with prior websites that had smeared Amanda Ghost in 2024 and Plaintiff in 2022-2023.

Defendant now points to testimony from the August 11 deposition indicating:

(1) Horton

did not attribute the Nikolas posts to any person and had no opinion that any defendant created, commissioned, funded, directed, or operated any website he examined.

(2) Horton

could not identify any defendant who created any content; his report was not meant to assign human attribution; it connects no defendant to any website, and he has no evidence that any defendant ever visited, edited, commissioned, or paid for any listed page.

(3) Horton's

report offered no opinions concerning the Nikolas sites which are not included in Section 8, the core basis of his commonality opinion.

(4) The

Nikolas material was not significant or material to his overlapping-indicators opinion and does not appear in the section of his Report devoted to comparisons between defamatory websites.

The Court does not find this testimony material to the Court's prior determination that Plaintiff's claims are not time barred because she could not have, through reasonable diligence, discovered the potential connection between the websites defaming her and Defendants until the Horton report was publicly filed in December 2025.

In the Anti-SLAPP ruling, the Court correctly characterized the Horton report as connecting the dots between websites defaming Jones, Ghost, and others like Plaintiff as having the hallmarks of common authorship. That Horton did not additionally identify specifically who that common author was because that determination was beyond the scope of his technical analysis is immaterial. Rather, once Horton's report alerted Plaintiff that the defamatory websites had at least some hallmarks of common authorship, Plaintiff was able to connect the dots to Defendants via additional information publicly disclosed in connection with those other cases, and by comparing the victims and identifying Defendants as antagonists they all had in common.

Thus, it was not error for the Court to determine that Plaintiff could not, through reasonable diligence, have discovered any potential connection between the websites defaming her and Defendants until the Horton report was publicly filed in December 2025, describing commonalities between the websites.

Nor is it material to the Court's actual malice finding that although the Horton Report identified some commonalities with the websites defaming Plaintiff, it ultimately excluded Plaintiff's websites from the core of its commonality analysis in connection with the Samantha Jones case.

As a threshold matter, Freedman argues on the one hand that the Horton Report is hearsay and not admissible for the truth of its substance, which the Court generally agrees with, and ultimately took judicial notice of the fact that it was publicly filed for purposes of determining when Plaintiff was on notice of its contents. Yet, now, Freedman argues on the other hand that the substance of the Horton Report, as clarified by the Horton Deposition, exonerates Freedman, which is generally improper.

Moreover, the selected pages Freedman provided of the Horton deposition are insufficient to give the Court full context as to what commonalities and differences Horton identified between Plaintiff's websites and the websites involving the other victims, or why Horton omitted Plaintiff's websites from the core of his commonality analysis.

The Court notes, however, that the websites defaming Plaintiff came first, years before the other websites. But that does not mean those websites and the websites about Plaintiff definitely or even probably do not have common authorship. The report still identified the websites defaming Plaintiff as having

commonalities with the other websites, which suggests Plaintiff will similarly be able to retain her own expert, whether Horton or some other digital forensics expert, to identify and explain the commonalities between the websites in connection with this case.

Therefore, the selected excerpts of the Horton Deposition provided do not warrant reconsideration of the Court's Anti-SLAPP ruling.

CONCLUSION
AND ORDER

For the foregoing reasons, the Court denies Freedman's Motion for Reconsideration.

Freedman shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 22, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court